IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU

I.A.No.222/18 IN CP(CAA)13/2018
U/ R 11 , 15 and 32 of NCLT Rules, 2016.

In the matter of

Timken India Limited,
A Company incorporated under the Companies Act, 1956, having its Registered Office at 39-42, Electronic City, Phase II, Hosur Road, Bengaluru – 560 100.

...Applicant/Petitioner Company/ Transferee Company

Date of Order: 6th August, 2018

CORAM: Hon'ble Shri Rajeswara Rao Vittanala, Member (J)
Hon'ble Dr.Ashok Kumar Mishra, Member (T)

Counsel/Parties present:

For the Applicant : Shri Perikal K.Arjun

For the Respondents : None

Per: Shri Rajeswara Rao Vittanala, Member (J)

ORDER

1. I.A.No.222/18 in CP(CAA).No.13/BB/18 is filed by Timken India Limited, under Rule 11, 15 and 32 of NCLT Rules, 2016 by inter alia seeking to enlarge the time for filing the Form INC-28 with the Registrar of Companies, Bengaluru by condoning the delay of 62 days.

2. Heard Shri Perikal K.Arjun, learned counsel for the Petitioner. The learned counsel submit that this Tribunal disposed of CP(CAA)No.13/BB/2018 by an order dated 26.04.2018 by inter alia sanctioning the Scheme, directing the Company to file a certified copy of the said order along with a copy of scheme of Amalgamation to the Registrar of Companies within 30 days from the date of receipt of that order.

3. The learned counsel for the Applicant/Petitioner submit that the Petitioner Company was of the bonafide belief that copy of the order sanctioning the Scheme of this Tribunal is to be filed with the ROC at Bengaluru, only after receipt of the order of sanctioning the Scheme by NCLT Mumbai bench is received.

4. The learned counsel further submit that copy of order passed by NCLT . Mumbai Bench was received by him only on 17.07.2018. Therefore, Company has filed the copy of the order of Mumbai Bench only on 27.07.2018, caused delay of 62 days to comply with the directions of this Bench, and prayed to allow the application, and direct the ROC to accept the Scheme.

5. We have considered the pleadings of the party, and also perused the materials placed on record. We are convinced that the applicant is entitled to enlarge time in the interest of justice.

6. In the result I.A.No.222/18 in CP(CAA)No.13/BB/2018 is allowed by condoning the delay of 62 days in filing certified copy. Accordingly, ROC is directed to take appropriate action in accordance with law.

(Dr.Ashok Kumar Mishra)
Member (T)

(Rajeswara Rao Vittanala)
Member (J)

Prema Murray – Steno.